

CHAPTER 55

An Act to make provision with respect to the interpretation of references to private gain in certain enactments relating to lotteries or gaming, and to exclude the operation of paragraph (b) of subsection (1) of section sixteen of the Betting and Gaming Act, 1960, in relation to gaming to which section twenty of that Act applies. [1st August, 1962]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Interpretation
of references
to private gain.

1.—(1) In construing any of the following enactments (which relate to the legalisation of certain lotteries or gaming where the proceeds thereof are applied to purposes other than purposes of private gain), that is to say—

24 & 25 Geo. 5.
c. 58.

(a) section twenty-three of the Betting and Lotteries Act, 1934;

4 & 5 Eliz. 2.
c. 45.

(b) section four of the Small Lotteries and Gaming Act, 1956; and

8 & 9 Eliz. 2.
c. 60.

(c) sections seventeen, twenty and twenty-three of the Betting and Gaming Act, 1960,

proceeds of any entertainment, lottery, gaming or amusement promoted on behalf of a society to which this subsection extends which are applied for any purpose calculated to benefit the society as a whole shall not be held to be applied for purposes of private gain by reason only that their application for that purpose results in benefit to any person as an individual.

(2) In construing paragraph (c) of subsection (1) of section one of the said Act of 1956, any purpose for which any society is established or conducted which is calculated to benefit the society as a whole shall not be held to be a purpose of private gain by reason only that action taken in its fulfilment would result in benefit to any person as an individual.

(3) For the purposes of the provisions mentioned in paragraphs (b) and (c) of subsection (1) of this section, where any payment falls to be made by way of a hiring, maintenance or other charge in respect of a gaming machine within the meaning of section seventeen of the Betting and Gaming Act, 1960, or in respect of any equipment for holding a lottery or gaming at any entertainment, then, if, but only if, the amount of that charge falls to be determined wholly or partly by reference to the extent to which that or some other such machine or equipment is used for the purposes of lotteries or gaming, that payment

shall be held to be an application of the stakes hazarded or proceeds of the entertainment, as the case may require, for purposes of private gain; and accordingly any reference in those provisions to expenses shall not include a reference to any such charge falling to be so determined.

(4) Subsection (1) of this section extends to any society which is established and conducted either—

(a) wholly for purposes other than purposes of any commercial undertaking; or

(b) wholly or mainly for the purposes of participation in or support of athletic sports or athletic games;

and in this section the expression “society” includes any club, institution, organisation or association of persons, by whatever name called, and any separate branch or section of such a club, institution, organisation or association.

2. In sub-paragraph (ii) of paragraph (b) of section twenty of the Betting and Gaming Act, 1960 (which provides that, in relation to gaming to which that section applies, section sixteen of that Act shall have effect as if for the condition set out in paragraph (c) of subsection (1) thereof there were substituted the conditions set out in subsection (1) of section four of the Small Lotteries and Gaming Act, 1956) for the words “the condition set out in paragraph (c)” there shall be substituted the words “the conditions set out in paragraphs (b) and (c)”. Payments at entertainments not held for private gain.

3.—(1) This Act may be cited as the Lotteries and Gaming Act, 1962. Short title and extent.

(2) This Act shall not extend to Northern Ireland.

CHAPTER 56

An Act to amend the law relating to the functions of local authorities with respect to records in written or other form. [1st August, 1962]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) A local authority may do all such things as appear to it necessary or expedient for enabling adequate use to be made of records under its control, and in relation to such records may in particular— Power to promote adequate use of records.

(a) make provision for enabling persons, with or without charge and subject to such conditions as the authority may determine, to inspect the records and to make or obtain copies thereof;